

25CMCV00442 25CMCV00442

County: los-angeles

Division: Civil Law and Motion

Department: E

Hearing date: 2026-06-24

Motion: PLAINTIFF'S MOTION FOR RELIEF PURSUANT TO CCP § 473(b) DATE: June 24, 2026 TIME: 8:30 A.M.

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Case Number: 25CMCV00442 Hearing Date: June 24, 2026 Dept: E

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES – SOUTH CENTRAL

DISTRICT

JESUS

MANUEL RANGEL,

Plaintiff,

vs.

MARLENE SISON-MODINO,

Defendant.

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CASE

NO: 25CMCV00442

[TENTATIVE] ORDER RE: PLAINTIFF'S MOTION

FOR RELIEF PURSUANT TO CCP § 473(b)

DATE: June 24, 2026

TIME: 8:30 A.M.

DEPT.: E

Moving Party: Plaintiff

Jesus Manuel Rangel

Responding Party: Defendant

Marlene Sison-Modino

Notice: OK

Tentative Ruling: Plaintiff's Motion for

Relief Pursuant to CCP § 473(b) is DENIED.

I.

BACKGROUND

This is an

action for breach of contract and habitability concerns regarding a residential

lease for a garage located at 332 E. Carson Street, Carson, CA 90745 (the

“Premises”).

On March 17, 2025, Plaintiff Jesus Manuel Rangel

(“Plaintiff”) filed his original Complaint against Defendants Marlene

Sison-Modino (“Defendant”) and Does 1 to 20, alleging three causes of action

for: (1) Breach of Contract; (2) Negligence; and (3) Violation of Civil Code

Section 1942.4.

On January 20, 2026, Defendant filed a demurrer to

Plaintiff’s complaint.

Defendant’s

Demurrer was heard on April 1, 2026 and, after taking Defendant’s Demurrer

under submission, the Court issued a ruling sustaining Defendant’s Demurrer

with leave to amend. (See Minute Order,

4/1/26.) Plaintiff was ordered to file

an amended complaint no later than May 4, 2026. (See *Id.*) The Court gave notice of its ruling. (See Clerk’s Certificate of Service by

Electronic Service, 4/2/26 (Notice to Defendant); see also Clerk’s Certificate

of Mailing, 4/1/26 (Notice to Plaintiff) .)

On May 11,

2026, Defendant filed an Ex Parte Application for Order Dismissing Action With

Prejudice for Failure to Amend Complaint After Demurrer was Sustained With

Leave to Amend and For Entry of Judgment (the “Ex Parte Application”). Plaintiff filed an Opposition to Defendant’s

Ex Parte Application on May 13, 2026.

The Court issued an Order granting Defendant’s Ex Parte Application and

dismissing this matter with prejudice on May 14, 2026. (See Ruling on

Defendant’s Ex Parte Application for Order of Dismissal Pursuant to Code of

Civil Procedure § 581(f)(2), filed 5/14/26.)

On May 27,

2026, Plaintiff filed the instant Motin for Relief Pursuant to CCP § 473(b).

On June

10, 2026, Defendant filed an Opposition.

As of June

22, 2026, no Reply has been filed. Pursuant

to Code Civ. Proc. § 1005(b), all reply papers must be filed and served at

least five court days before the hearing. (Code Civ. Proc. § 1005(b).)

Accordingly, any reply papers now filed are untimely, and the Court exercises

its discretion to refuse to consider untimely filed papers. (Cal. R. Ct., Rule

1300(d); Mackey v. Bd. of Trustees of California State Univ. (2019) 31

Cal.App.5th 640, 657.)

II.

ANALYSIS

A.

Legal

Standard

Code of Civil Procedure § 473(b)

“provides for both discretionary and mandatory relief. [Citation.]” (Pagnini

v. Union Bank, N.A. (2018) 28 Cal.App.5th 298, 302.) An application

for relief under this section must be made no more than six months after entry

of the judgment, dismissal, order, or other proceeding from which relief is

sought, and must be accompanied by an affidavit of fault attesting the mistake,

inadvertence, surprise or neglect of the moving party or its attorney. (Code

Civ. Proc., § 473(b); English v. IKON Business Solutions (2001)

94 Cal.App.4th 130, 143.)

In addition, an application for relief under this section “shall

be accompanied by a copy of the answer or other pleading proposed to be filed

herein, otherwise the application shall not be granted.” (Code Civ. Proc. §

473(b).) Relief under this section is mandatory when based on an

attorney affidavit of fault; otherwise, it is discretionary. (Ibid.)

B.

Discussion

Plaintiff moves for relief from the

Court's May 14, 2026 order dismissing this matter pursuant to Code of Civil

Procedure § 581(f)(2), asserting that "[d]ue to mistake, inadvertence, and

excusable neglect, the amended complaint was not timely filed." (See Mot., p. 1:21-23;

see also Rangel Decl., Mot, p. 2:8-9.) Defendant opposes, arguing that the

mandatory provisions of Code of Civil Procedure § 473(b) are inapplicable and

discretionary relief should be denied where there is no adequate showing of

mistake, inadvertence, surprise or excusable neglect. Citing *Peltier v. McCloud River R.R. Co.*

(1995) 34 Cal.App.4th 1809 ("Peltier"), Defendant further argues that

Code of Civil Procedure § 473(b) is intended only to reach those dismissals

which resulted from the failure to oppose a dismissal motion, which is not the

case here given that Defendant's Ex Parte Application to Dismiss was opposed.

The Court finds Defendants'

arguments persuasive.

First, outside of summarily stating

that the failure to file an amended complaint as ordered was the result of

mistake, inadvertence or excusable neglect, Plaintiff provides no factual basis

for the Court to make such a determination.

Second, a motion for relief made

pursuant to Code of Civil Procedure § 473(b) “shall be accompanied by a copy of

the answer or other pleading proposed to be filed therein, otherwise the

application shall not be granted.” (Code Civ. Proc. § 473(b).) Plaintiff has not included with his motion a

copy of his proposed amended complaint, which omission not only precludes

relief under Code of Civil Procedure § 473(b) but is further concerning given

that the claimed mistake, inadvertence, surprise and/or excusable neglect arose

from Plaintiff’s failure to file his amended complaint in accordance with the

Court’s order requiring that the amended pleading be filed by May 4, 2026.

Finally, Defendant is correct in

that Plaintiff was informed of the prior Ex Parte Application for an Order of

Dismissal and filed an Opposition to the Ex Parte Application. (See Opposition,

filed 5/13/26.) And Defendant is also correct in that controlling authority as set

forth in *Peltier*, supra, sets forth the rule that Code of Civil

Procedure § 473 pertains only to dismissals which are procedurally equivalent

to a default. (See *Peltier*, supra, 34 Cal.App.4th at p. 1817 (Reviewing

appellate authority and adopting the interpretation that “when the Legislature

incorporated dismissals into section 473 it intended to reach only those

dismissals which occur through failure to oppose a dismissal motion--the only

dismissals which are procedurally equivalent to a default").)

III.

CONCLUSION

For the foregoing reasons,

Plaintiff's Motion for Relief Pursuant to CCP § 473(b) is DENIED.